

Albertini De Agnoscendis (LA/EN)

<i>Latin</i>	<i>English</i>
Source: Arnaldo Albertini (bishop of Patti), <i>De agnoscendis assertionibus catholicis et haereticis</i>, Venice 1571. Images a-01...a-24 = selection-PDF pages 1–24 (a-01...a-14 = fols. 10r–16v; a-15...a-24 = fols. 25v–30r). Single column, foliated; running heads: rectos “DE AGNOSC. ASSER[T]. CATH. ET HAER. <fol.>”, versos “ARNAL. ALBER. EPIS. PACT. QVAEST.”	Source: Arnaldo Albertini (bishop of Patti), <i>De agnoscendis assertionibus catholicis et haereticis</i>, Venice 1571. Images a-01...a-24 = selection-PDF pages 1–24 (a-01...a-14 = fols. 10r–16v; a-15...a-24 = fols. 25v–30r). Single column, foliated; running heads: rectos “DE AGNOSC. ASSER[T]. CATH. ET HAER. <fol.>”, versos “ARNAL. ALBER. EPIS. PACT. QVAEST.” Translated 1:1 from the diplomatic transcript (transcript_v1.md), verified against the page images.

<i>Latin</i>	<i>English</i>
Printer's oddities retained (sic): "a, Deo" (commas so pointed, fols. 11r, 11v, 28r: "ita, a, Deo"); "c. a, recta" (fol. 26v) vs. "c. arecta." (fol. 14v); "Angustinum" for Augustinum (fol. 14v); "conuicere" (summarium, fol. 12v) vs. "conuincere" (text, fol. 14r); "Abbas iu cap. significasti" for "in" (fol. 28r); "vrū verū" for vtrū verū (fol. 12v); "cosequentia" without macron (fol. 13r); "usque in finem seculi. Matthæi. vj." (fol. 12r); "Ioannesmaria" printed as one word, three times (fol. 15r); "In his quæ sunt a Deū" (fol. 28r); marginal numeral 11 of Q. 9 is not printed (margins jump 10 → 12), though the summarium has item 11. One residual ambiguity: "e. ti." (fol. 28v, "gl. in l. decreto. §. fi. e. ti.") — the letter could be a broken "c." No illegible letters remain ([?] count: 0).	Printer's oddities. The printer's anomalies retained [sic] in the transcript ("a, Deo"; "Angustinum"; "conuicere"; "iu cap."; "vrū verū"; "Ioannesmaria" printed as one word; "In his quæ sunt a Deū"; etc.) are rendered here according to their evident sense, without [sic] flags — except that citation strings are reproduced exactly as printed, including anomalous forms ("c. a, recta" at fol. 26v beside "c. arecta." at fol. 14v; "Matthæi. vj." at fol. 12r; "Luæ xv." at fol. 27r; "ad Hæbreos 7." at fol. 28r, rendered as the biblical references printed). "Ioannesmaria de Monte" is kept as printed. The marginal numeral 11 of Q. 9 is not printed (the margins jump 10 → 12), though the summarium has item 11; the translation follows the print.

<i>Latin</i>	<i>English</i>
UNIT 1 — QVARTA QVAESTIO (quid sit veritas catholica) + QVINTA QVAESTIO (gradus veritatum catholicarum), fols. 10v–15v	UNIT 1 — FOURTH QUESTION (what Catholic truth is) + FIFTH QUESTION (the grades of Catholic truths), fols. 10v– 15v
<i>SVMMARIVM.</i>	<i>SUMMARY.</i>
<i>1 Veritas Catholica quid sit. 2 Veritas Catholica explicite & implicite dicitur.</i>	<i>1 What Catholic truth is. 2 Catholic truth is said explicitly and implicitly.</i>
<i>3 Veritas catholica secundum Boetium. 4 Hæretica assertio quæ sit. 5 Veritas Catholica est sine approbatione Ecclesiæ. 6 Hæreses sunt sine approbatione Ecclesiæ. 7 Veritas Catholica quid sit secundum Theologos.</i>	<i>3 Catholic truth according to Boethius. 4 What a heretical assertion is. 5 Catholic truth exists without the approbation of the Church. 6 Heresies exist without the approbation of the Church. 7 What Catholic truth is according to the theologians.</i>
QVARTA QVAESTIO.	FOURTH QUESTION.
QVARTO. 1. † Quæro. quid sit ueritas catholica? ut cognoscamus quod est ueritati Catholicę contrarium. Est igitur ueritas Catholica, quæ ex diuinæ reuelationis lumine supernaturali, immediate uel mediate ē habita, explicite in propria uerborū forma, uel implicite bona & necessaria cōsequētia. Dñ ex lumine diuinæ reuelationis habita, ad	FOURTHLY. 1. † I ask: what is Catholic truth? — so that we may know what is contrary to Catholic truth. Catholic truth, then, is that which has been obtained from the supernatural light of divine revelation, immediately or mediate,

<i>Latin</i>	<i>English</i>
dñā ueritatū per rationis inquisitionē sub lumine naturali cognoscibiliū, quæ non merentur dici catholicæ. Dñ at mediate uel immediate habita, qm aliqua nobis Deus imediate per se ipsum reuelauit & reuelat, sicut Euangeliū. unde Io. 1. dñ. Vnigenitus Dei filius q̄ est in sinu Patris enarrauit nobis. & Esaiæ. lij. Ecce ego qui loquebar adsum. Aliqua uero reuelauit nobis & reuelat Deus per alios, sicut per angelos suos, & apostolos, siue per alios uiros sanctos. Pau. ad Hæb. j. olim inquit loquens Deus patribus in prophetis, nouissime locutus est in filio. Et ij. Pe. j. non em̄ uolūtate humana allata est prophetia, Sed Spiritu Sancto inspirante locuti sunt homines. Et iō nō tm̄ ueritas catholica dicenda est a, Deo per se ipsum immediate a fidelibus tradita, Sed ēt quæ per sanctos ab eo doctos & inspiratos est habita. cum spiritus sanctus, quo inspirāte sancti Dei homines locuti sunt & loquuntur nō nisi ueritatem doceat atque inspiret: Io. 16. cum uenerit ille spiritus ueritatis docebit uos omnē ueritatem. Dicitur 2. † explicite in propria uerborum forma, implicite uero bona & necessaria consequentia deducta. his enim duobus modis dicitur quid contineri in sacra	explicitly in the proper form of words, or implicitly by good and necessary consequence. It is said obtained from the light of divine revelation, in distinction from truths knowable through the inquiry of reason under the natural light, which do not deserve to be called Catholic. And it is said obtained mediately or immediately, since some things God has revealed and reveals to us immediately, through his very self, as the Gospel; whence in John 1 it is said: The only-begotten Son of God, who is in the bosom of the Father, hath declared to us; and in Isaias 52: Behold, I that spoke, am here. But some things God has revealed and reveals to us through others, as through his angels and apostles, or through other holy men. Paul, to the Hebrews 1: God, he says, speaking of old to

<i>Latin</i>	<i>English</i>
scriptura, aut in propria uerborum forma, sicut ista. Verbum caro factum est, & ista, Christus fuit homo. Aut aliquid implicite, quod bona & necessaria consequentia ex propositis in litera explicite sequitur, sicut ex illa, Christus fuit homo, sequitur necessaria consequentia, habuit animam rationalem, & omnes animæ potentias. Sequitur etiam habuit carnem & ossa &c. quæ pertinent ad ueritatem humanæ naturæ, ut scribit Episcopus Vsselen. in libello quem fecit contra comitem Mirandulanum. c. iij. quorum plura sumpsit ex tractatu de potestate Papæ edito per Car. de Turre Cre. li. 4. c. 8. authore tacito. Sed exemplum ab eo positum mihi non uidetur congruere deducatur ex consequentia necessaria, quòd Christus habuit carnem & ossa, cum hoc explicitum sit in propria uerborum forma in sacra scriptura lectionis Euangelicæ Luc. 24. dum Christus dixit discipulis suis post resurrectionē. Videte manus meas & pedes meos, quia ego ipse sum, palpate & uidete, quia spiritus carnem & ossa non habent sicut me uidetis habere. Vnde cōgruentius exemplum esset, si diceremus, Ergo habuit neruos & uenas,	the fathers in the prophets, last of all hath spoken in the Son. And 2 Peter 1: For prophecy was not brought by human will, but men spoke, the Holy Ghost inspiring them. And therefore not only is that truth to be called Catholic by the faithful which was delivered by God through his very self immediately, but also that which has been obtained through the saints taught and inspired by him; since the Holy Ghost, by whose inspiration the holy men of God have spoken and speak, teaches and inspires nothing but truth: John 16: when he, the Spirit of truth, is come, he will teach you all truth. It is said 2. † explicitly, in the proper form of words; but implicitly, as deduced by good and necessary consequence. For in these two ways something is said to be contained in sacred Scripture: either in the

<i>Latin</i>	<i>English</i>
q̄a hęc explicite in sacro canone non continentur, Sed ex necessaria consequentia deducitur. ut dicit Ioan. de Gerso. & Car. in d. loco. Item 3. † dicitur ueritas catholica s̄m Boetiū primo de Trinit. quia nō uni genti tantum, Sed omnibus obseruanda & credenda proponitur, unde Matthæi ultimo dicit Christus, Euntes docete omnes gentes, & Marci xvj. Predicate Euangelium omni creaturæ; Vnde 4. † illa assertio seu propositio est hæretica, quæ contrariatur ueritati catholicæ iuxta suum gradum, quia secundū Aristotelem quot modis dicitur unū oppositorum tot modis dicitur & reliquum, ideo opere precium est, ut in sequenti quæstione pertractemus gradus, seu genera ueritatum catholicarum, ut eis cognitis. cognoscantur earum òpposita, cum contrariorum eadem sit disciplina. l. Pomponius. §. Sed & is. ff. de procu. l. j. in prin. ff. de hiis qui sunt sui uel alie. iuris. cum ibi traditis. Et 5. † sicut ueritates catholicæ (ut supra tetigi) absque oī approbatione ecclesiæ ex natura rei sunt immutabiles & immutabiliter ueræ, ita sunt immutabiliter catholicæ reputandæ. Similiter, 6. † sicut hæreses absque omni	proper form of words, as this: The Word was made flesh; and this: Christ was a man. Or something implicitly, which follows by good and necessary consequence from the things set forth explicitly in the letter; as from this, Christ was a man, it follows by necessary consequence that he had a rational soul and all the powers of the soul. It follows also that he had flesh and bones, etc., which pertain to the truth of human nature, as writes the Bishop Vsselen. in the little book which he made against the Count of Mirandola, c. iij. — many of which things he took from the treatise de potestate Papæ published by Car. de Turre Cre., li. 4. c. 8., the author unnamed. But the example set down by him does not seem to me apt, that it should be deduced by necessary consequence that Christ had flesh and bones,

<i>Latin</i>	<i>English</i>
reprobatione & damnatione sunt falsæ, ita absque reprobatione sunt hereses reputandæ ut dicit Gabriel. in 3. sententiarum. di. 25. q. unica. ver. tertio dubitatur. Alibi 7. † ēt idem inquit in 4. dist. xij. q. ij. ar. j. diffiniens ueritatem catholicam, ueritas catholica est ueritas reuelata, a, Deo in se uel in suo antecedente pertinens ad religionem. Dicitur reuelata, a, Deo, quia ueritas humano ingenio acquisita, puta per demonstrationem uel per experiētiā, ut talis, non dicitur ueritas catholica, quia omnis ueritas catholica est articulus fidei, fides autem non innititur euidentiæ naturali Sed diuinæ reuelationi, Dicitur in se, propter ueritates sacri canonis bibliæ, quæ omnes immediate siue secundum se scriptoribus eius sunt reuelatæ, ipsi enim fuerunt calamus scribæ. i. Spiritus Sancti uelociter scribētis, ut scribitur in multis decretis conditis per August. 9. dist. Dicitur uel in suo antecedente, propter ueritatem, quæ ex contentis In biblia potest in consequentiam necessario inferri seu deduci. Vt est illa, Deus est uerus homo ex anima rationali & carne subsistens, quæ sub hac forma uerborum non habetur in scriptura. Sed ex ea potest	since this is explicit, in the proper form of words, in the sacred scripture of the Gospel lesson, Luke 24, when Christ said to his disciples after the resurrection: See my hands and my feet, that it is I myself; handle and see: for a spirit hath not flesh and bones, as you see me to have. Whence it would be a more apt example if we said: Therefore he had sinews and veins; because these things are not contained explicitly in the sacred canon, but it is deduced by necessary consequence, as say Ioan. de Gerso. and the Card. in the said place. Likewise 3. † it is called Catholic truth, according to Boethius, primo de Trinit., because it is set forth to be observed and believed not by one nation only, but by all; whence, in the last of Matthew, Christ says: Going, teach ye all nations; and Mark 16: Preach

<i>Latin</i>	<i>English</i>
deduci in consequentiam necessariam. Dicitur, ad religionem pertinens, propter ueritates religionem siue pietatem non respicientes, quæ non dicuntur ueritates Catholicæ, quàmuis fuerint a, Deo reuelatæ, pertinet autem ad religionem quicquid ad pietatem id est Dei cultum, aut ad finem beatitudinis consequendæ ordinatur. Ex illo sequitur, multæ ueritates quæ in Scriptura Canonica non habentur, nec ex eis solis deduci possunt in consequentiam necessariam sunt catholicæ. Primo patet de his quæ ab apostolis ad nos per succedentium reuelationem, uel scripturas fidelium fide dignas peruenerunt, & tamen in scriptura canonica non continentur. hæc Apostolis per Spiritum Sanctum reuelata (a quo docti sunt omnem ueritatem) non dubitatur. Secundum patet de his quæ ex præmissis coassumpto aliquo uero necessario euidente uel certo deduci possunt. Tertio patet de his ueritatibus quæ aliis fidelibus a Deo reuelatæ esse sufficienter ostenduntur. Quarto patet de his quæ ab Ecclâ uniuersali ut credēda accepta sūt, supponi eā in fide errare nō posse, cuius fidem deficere non posse, Oratio Christi pro fide Petri manifestat, Luc. xxij. & eius promissa	the Gospel to every creature. Whence 4. † that assertion or proposition is heretical which is contrary to Catholic truth according to its grade; because, according to Aristotle, in as many ways as one of two opposites is said, in so many ways is the other also said; therefore it is worth the effort that in the following question we treat thoroughly the grades, or kinds, of Catholic truths, so that, these being known, their opposites may be known, since of contraries the discipline is the same. l. Pomponius. §. Sed & is. ff. de procu. l. j. in prin. ff. de hiis qui sunt sui uel alie. iuris. with the things there handed down. And 5. † just as Catholic truths (as I touched on above), apart from all approbation of the Church, are by the nature of the thing immutable and immutably true, so are they to be reckoned immutably

<i>Latin</i>	<i>English</i>
assistentia usque in finem seculi. Matthæi. vj. certam reddiderunt. Quinto & ultimo patet de ueritatibus a generalibus conciliis & Romanis Pontificibus rite determinatis, hæc. n. omnia uel reuelata sunt, uel ex solis reuelatis sunt deducta, uel ex reuelatis, & illis ueritatibus coassumptis, neque aliud determinat rite Concilium, uel Romanus Pontifex ut est proxime dictum. Et hæ quinque ueritates catholicæ latius explicantur in gradibus seu generib. catholicarum ueritatum, quæ statim subiiciuntur pro præmissorum dilucida declaratione. Ex quibus resolutoria patet diffinitio assertionis catholicæ. hoc est, assertio catholica est ueritas ex lumine diuinæ reuelationis immediate uel mediate habita, explicite, & in propria uerborum forma, uel implicite bona & necessaria consequentia deducta, declarando singula uerba ut dixi. Vel aliter potest dici secundum aliquos. Assertio catholica est illa cui quilibet adultus tenetur explicite uel implicite firmiter adhærere per solam fidem & non per experientiam aut rōnem demonstratiuam, quamuis de facto habeat aliqua motiua. Et iō dñ catholica. i. uniuersalis, ut dicit	Catholic. Similarly, 6. † just as heresies, apart from all reprobation and condemnation, are false, so apart from reprobation are they to be reckoned heresies, as says Gabriel. in 3. sententiarum. di. 25. q. unica. ver. tertio dubitatur. Elsewhere 7. † the same author also, in 4. dist. xij. q. ij. ar. j., defining Catholic truth, says that Catholic truth is a truth revealed by God, in itself or in its antecedent, pertaining to religion. It is said revealed by God, because a truth acquired by human ingenuity — say, through demonstration or through experience — as such is not called Catholic truth; for every Catholic truth is an article of faith, and faith rests not upon natural evidence but upon divine revelation. It is said in itself, on account of the truths of the sacred canon of the Bible, which have all

<i>Latin</i>	<i>English</i>
gl. in rub. C. de Sum. Tri. & Arch. in c. fundamenta. in prin. de elect. li. 6. quia ubique p̄dicāda est, & omnibus gētibus credēda proponitur, Vnde Christus Marci. ult. Euntes docete oēs gētes. Et quia nunq̄ in ea subfuit subest aut suberit aliquod falsum, prout scribit Boeti. in princi. lib. de Trinitate.	been revealed to its writers immediately, or according to themselves; for they were the pen of the scribe, that is, of the Holy Ghost writing swiftly, as is written in many decrees composed by August. 9. dist. It is said or in its antecedent, on account of a truth which from the things contained in the Bible can necessarily be inferred or deduced in consequence; as is this: God is true man, subsisting of a rational soul and flesh — which under this form of words is not found in Scripture, but from it can be deduced in necessary consequence. It is said pertaining to religion, on account of truths not regarding religion or piety, which are not called Catholic truths, although they may have been revealed by God; and there pertains to religion whatever is ordered to piety, that is, the worship of God, or to the end of attaining

<i>Latin</i>	<i>English</i>
	beatitude. From this it follows that many truths which are not found in canonical Scripture, nor can be deduced in necessary consequence from those alone, are Catholic. First, this is evident of those which have come down to us from the apostles through the revelation of those succeeding them, or through trustworthy writings of the faithful, and yet are not contained in canonical Scripture; that these things were revealed to the Apostles through the Holy Ghost (by whom they were taught all truth) is not doubted. Second, it is evident of those which can be deduced from the foregoing, some necessary, evident, or certain truth being co-assumed. Third, it is evident of those truths which are sufficiently shown to have been revealed by God to other faithful. Fourth, it is evident of those

<i>Latin</i>	<i>English</i>
	which have been accepted by the universal Church as things to be believed; for it is supposed that she cannot err in the faith: that her faith cannot fail, the prayer of Christ for the faith of Peter makes manifest, Luke 22, and his promised assistance even to the end of the world, Matthew 6, have rendered certain. Fifth and last, it is evident of the truths duly determined by general councils and Roman Pontiffs; for all these things either have been revealed, or have been deduced from revealed things alone, or from revealed things and those truths co-assumed; nor does a Council, or the Roman Pontiff, duly determine anything else, as has just been said. And these five Catholic truths are more fully explicated in the grades or kinds of Catholic truths, which will at once be subjoined for the lucid

<i>Latin</i>	<i>English</i>
	declaration of the foregoing. From which, by way of resolution, the definition of a Catholic assertion is evident: that is, a Catholic assertion is a truth obtained from the light of divine revelation immediately or mediately, explicitly and in the proper form of words, or implicitly, deduced by good and necessary consequence — declaring the individual words as I have said. Or otherwise it can be said, according to some: a Catholic assertion is that to which every adult is bound explicitly or implicitly firmly to adhere by faith alone, and not by experience or demonstrative reason, although in fact he may have certain motives. And therefore it is called Catholic, that is, universal, as say the gl. in rub. C. de Sum. Tri. and the Arch. in c. fundamenta. in prin. de elect. li. 6., because it is to

<i>Latin</i>	<i>English</i>
	be preached everywhere, and is set forth to be believed by all nations; whence Christ, Marci. ult.: Going, teach ye all nations. And because in it nothing false has ever lain beneath, lies beneath, or will lie beneath, as writes Boeti. at the beginning of the book de Trinitate.
<i>SVMMARIVM.</i>	<i>SUMMARY.</i>
<i>1 Catholicarum ueritatum gradus quot sunt. 2 Furi par est occultator alienæ laudis. 3 Scriptura sacra nullam recipit dubitationem ueritatis. 4 Hæretica assertio est, quæ contradicit ueritati catholicæ in propria uerborum forma.</i>	<i>1 How many grades of Catholic truths there are. 2 He who conceals another's praise is equal to a thief. 3 Sacred Scripture admits no doubt of its truth. 4 A heretical assertion is that which contradicts Catholic truth in the proper form of words.</i>
<i>5 Hæretica assertio est, quæ contradicit sacræ scripturæ ex deductis in necessariam consequentiam. 6 Hæretica assertio est quæ cōtradicit his quæ nobis ab Apostolis tradūtur. 7 Concilium generale in his quæ fidei sunt errare non potest. 8 Multa leguntur in Ecclesiis, quæ nō credere non sunt de necessitate</i>	<i>5 A heretical assertion is that which contradicts sacred Scripture in the things deduced into necessary consequence. 6 A heretical assertion is that which contradicts the things which are handed down to us by the</i>

<i>Latin</i>	<i>English</i>
<i>salutis. 9 Hæretica assertio est nō credere determinatis ab ecclesia in his q̄ sunt fidei. 10 Concilium potest errare in his quæ non sunt fidei. 11 Doctor unus potest conuicere communem opinionem. 12 Veritas catholica est credere determinatis a sede Apostolica in his quæ fidei sunt. 13 Veritas catholica est credere his quæ sancti doctores scripserunt contra hæreticos. 14 Doctores approbati ab ecclesia qui sunt. 15 Probabile quid sit. 16 Assertio sapiens catholicam ueritatem quæ sit. 17 Assertio hæresim sapiens quæ sit. 18 Quot sunt gradus siue genera catholicarum ueritatum.</i>	<i>Apostles. 7 A general council cannot err in the things which are of the faith. 8 Many things are read in the churches which it is not of the necessity of salvation to believe. 9 It is a heretical assertion not to believe the things determined by the Church in matters which are of the faith. 10 A council can err in things which are not of the faith. 11 One doctor can overcome the common opinion. 12 It is Catholic truth to believe the things determined by the Apostolic See in matters which are of the faith. 13 It is Catholic truth to believe the things which the holy doctors have written against heretics. 14 Who the doctors approved by the Church are. 15 What the probable is. 16 What an assertion savoring of Catholic truth is. 17 What an assertion savoring of heresy is. 18 How many are the</i>

<i>Latin</i>	<i>English</i>
	<i>grades or kinds of Catholic truths.</i>
QVINTA QVAESTIO.	FIFTH QUESTION.
QVINTO 1. † Quæro. quot sunt gradus seu genera siue modi cognoscendi ueritates catholicas? Et consequenter hæreses eis aduersantes? Respondeo plures esse, in quorum progressu sequar uestigia uenerabilis inceptoris Occhā, Io. de Ger. Cācellarij parisiensis, & Card. Sancti Sixti, & aliquorum aliorum, nec erubescā Authores nominare, a quibus didici & discam, Cum 2. † occultator alienæ laudis furi par sit ut est arg. in l. hæreditatum. §. fi. ff. ad legem falci. quam ad hoc allegat Bal. in præludiis feudo. col. fi. idem Bal. in rub. de eo qui est in posse. cau. rei serua. quē uiua uoce audiui allegatū a do. Iasso. Maino. in academia Ticinensi, dū legeret. l. 3. §. si rē. ff. de acq. pos.	FIFTHLY 1. † I ask: how many are the grades or kinds or ways of knowing Catholic truths — and consequently the heresies opposed to them? I answer that there are several, in the unfolding of which I shall follow the footsteps of the venerable inceptor Occham, of Io. de Ger., Chancellor of Paris, and of the Cardinal of Saint Sixtus, and of certain others; nor shall I blush to name the authors from whom I have learned and shall learn, since 2. † he who conceals another's praise is equal to a thief, as is argued in l. hæreditatum. §. fi. ff. ad legem falci., which Bal. alleges to this purpose in præludiis feudo. col. fi.; the same Bal. in rub. de eo qui est in posse. cau. rei serua.; whom I heard alleged viva voce by do. Iasso. Maino. in

<i>Latin</i>	<i>English</i>
	the academy of Ticinum, while he was lecturing on l. 3. §. si rē. ff. de acq. pos.
PRIMVS ergo gradus seu genus catholicarum ueritatum est eorum quæ in canone sacræ scripturæ, ueteris aut noui testamēti, in propria verborum forma continentur, ut est ista, in principio creauit Deus cœlum & terram. Item uerbum caro factum est, Quod 3. † autem hñoi ueritates in sacra scriptura contentæ catholicæ sint, manifestum est, cum de ueritate sacræ scripturæ nullo modo dubitandum sit, Vnde dicit August. & scribitur in c. quis nesciat. 9. dist. quis nesciat sacram scripturam canonicā tā ueteris, q̄ noui testī certis terminis suis cōtineri : eaque posterioribus oīm Eporū literis ita p̄poni, vt de illa omnino dubitari vel disceptari nō possit, vrū verū, vel vtrū rectū sit quicquid in ea scriptū sit, vel constiterit esse. Et alibi Aug. in c. ego solis. eadē. disti. dicit. Ego solis scripturarū libris (qui canonici appellantur) didici hunc timorē, honoremque deferre, vt eorū nullū scribendo errasse firmissime credā. & si alia probatio quæritur, sufficit Matthæi quinto. Amē quippe dico vobis, donec trāseat cœlum & terra, iota vnum	THE FIRST grade, then, or kind of Catholic truths is of those which are contained in the canon of sacred Scripture, of the Old or New Testament, in the proper form of words; as is this: In the beginning God created heaven and earth. Likewise: The Word was made flesh. But 3. † that truths of this kind, contained in sacred Scripture, are Catholic is manifest, since the truth of sacred Scripture is in no way to be doubted. Whence Augustine says, and it is written in c. quis nesciat. 9. dist.: Who does not know that the canonical sacred Scripture, of the Old as well as of the New Testament, is contained within its own fixed limits, and that it is so set before all later letters of bishops, that concerning it there can be no doubting or

<i>Latin</i>	<i>English</i>
aut vnus apex nō præteribit a lege donec omnia fiant: Et sequitur, Amen dico vobis, cælum & terra transibunt. Constat autem quòd canon bibliæ lex est Dei per reuelationem habita, cuius assertiones literales innituntur vnico literali principio, omne reuelatum à Deo est verū, vt dicit Aug. in d. c. ego solis. Vnde 4. † assertio quæ huic primæ veritati catholicæ contraireret, esset hæretica, quia huic primæ veritati primi gradus in proprijs terminis contradiceret, videlicet veritatibus sub propria verborum forma in sacra scriptura contentis, vt esset ita, in principio Deus nō creauit cælū & terrā. Aut verbū nō sit caro factū quæ ambæ assertiones in proprijs terminis cōtradidunt scripturæ veteris & noui testamenti, vt Gene. j. & Io. j. & sic esset prima species hæresum.	disputing at all whether whatever is written in it, or is established to be there, is true or is right. And elsewhere Augustine, in c. ego solis. eadē. disti., says: I have learned to pay this fear and honor to the books of the Scriptures alone (which are called canonical), that I most firmly believe that none of their authors erred in writing. And if other proof is sought, Matthew 5 suffices: For amen I say to you, till heaven and earth pass, one jot or one tittle shall not pass of the law, till all be fulfilled. And there follows: Amen I say to you, heaven and earth shall pass away. Now it is established that the canon of the Bible is the law of God obtained through revelation, whose literal assertions rest upon a single literal principle: everything revealed by God is true, as says Aug. in d. c. ego solis. Whence 4. †

<i>Latin</i>	<i>English</i>
	an assertion which should go against this first Catholic truth would be heretical, because it would contradict this first truth of the first grade in its proper terms — namely, the truths contained under the proper form of words in sacred Scripture — as would be this: that in the beginning God did not create heaven and earth; or that the Word was not made flesh; both of which assertions contradict in their proper terms the Scripture of the Old and New Testament, as Gene. j. and Io. j.; and thus it would be the first species of heresies.
SECVNDVS gradus Catholicarum veritatum est quæ ex solis contentis in sacro canone bona & necessaria consequentia inferuntur, inde cum tales veritates eandem veritatis firmitatem, & credulitatis necessitatem habeant quam habent veritates, ex quibus necessaria & formali consequentia inferuntur, inter veritates catholicas rationabiliter connumerantur, sicut hæc est veritas.	THE SECOND grade of Catholic truths is of those which are inferred by good and necessary consequence from the things contained in the sacred canon alone; hence, since such truths have the same firmness of truth and necessity of belief as have the truths from which

<i>Latin</i>	<i>English</i>
Christus est verus Deus & verus homo, quæ licet sic formaliter in serie sacræ scripturæ non inueniantur, vt dicunt Occham & Card. de Turre Crema. quia tamen ex contentis in sacra scriptura cōsequētia necessaria cōcludunt, catholica est censenda. Et eā credere necessariū est ad salutē. Vnde 5. † Tria assertio huic veritati catholicæ est secunda species hæresum, q̄ repugnat veritati catholicæ sc̄di gradus, uidelicet, q̄ ex solis cōtentis in sacra scriptura cosequentia necessaria & formali inferuntur. vt est, Christus non habuit intellectū passibilē aut agentē; cuius oppositū manifeste ūtia necessaria inferī ex tētis in sacra scriptura.	they are inferred by necessary and formal consequence, they are reasonably numbered among Catholic truths. Such a truth is this: Christ is true God and true man; which, although such things are not found thus formally in the course of sacred Scripture, as say Occham and Card. de Turre Crema., yet, because they are concluded by necessary consequence from the things contained in sacred Scripture, it is to be judged Catholic, and to believe it is necessary to salvation. Whence 5. † the assertion contrary to this Catholic truth is the second species of heresies, which is repugnant to the Catholic truth of the second grade — namely, to those truths which are inferred by necessary and formal consequence from the things contained in sacred Scripture alone. Such is: Christ did not have a

<i>Latin</i>	<i>English</i>
	passible or an agent intellect; the opposite of which is manifestly inferred by necessary consequence from the things contained in sacred Scripture.
TERTIVS gradus catholicarum ueritatum est eorū, quæ citra canonē sacræ scripturæ continentur. quæ tñ per reuelationē & approbationem tantum mediantibus apostolis ad fideles deuenerunt. Sane cum Christus uiueret in carne mortali, & Apostolos multa docuit, & fecit, quæ in sacro canone non habentur, sñ illud Ioan. vlt. Multa alia fecit Iesus q̄ non sunt scripta in libro hoc, multasque alias virtutes catholicas Christus ab Apostolis docēdas p̄cepit, q̄ in canone non hñtur. Hinc Aug. in iij. lib. de paruulorū baptismo dicit, illa q̄ non scripta seruat vniuersalis Ecclesia, accepit ab Apostolis Christo docente. idē Augu. in c. Ecclesiasticarū. xj. dist. & dicit tex. in c. cū Marthæ. de celeb. missa. super forma cōsecrationis Eucharistiæ. Sane multa tā de uerbis q̄ de factis dñicis inueniunt ab Euāgelistis ommissa, q̄ ēt Apostoli uel suppleuisse uerbo uel facto exposuisse legunt. Vt est, usus signi crucis sit in Ecclesia Et	THE THIRD grade of Catholic truths is of those which are contained outside the canon of sacred Scripture, but which have come down to the faithful through revelation and approbation only, by the mediation of the apostles. Indeed, while Christ lived in mortal flesh, he both taught the Apostles many things and did many things which are not found in the sacred canon, according to that saying of the last chapter of John: Many other things Jesus did, which are not written in this book; and Christ commanded many other Catholic virtues to be taught by the Apostles, which are not found in the canon. Hence Augustine, in

<i>Latin</i>	<i>English</i>
quòd fideles tali signo debeant insigniri. tanta enim est autoritas Ecclesiæ, dicebat Augusti. in Epistola fundamenti, Euangelio non crederem, nisi me autoritas Ecclesiæ compelleret. quanquàm uicissim dici posset, Ecclesiæ non crederē si non autoritas sacræ scripturæ impelleret. Et ita diuersis respectibus utraque mutuo se confirmat, ut inquit Gerson. Vnde 6. † esset tertia species hæresum, quæ contrairent ueritatibus catholicis huius tertij gradus catholicarum ueritatum. uidelicet quas Apostolorum traditione siue reuelatione uniuersalis Ecclesia credit & obseruat. Et in hoc genere hæretica esset assertio, quòd usus signi crucis non debeat esse in Ecclesia, unde tales ueritates, & quæ ex eis consequentia necessaria impermutabiliter possunt inferri, inter catholicas ueritates ueniunt computandæ. Et earum contrariæ assertiones hæreticæ censendæ.	the third book de paruulorum baptismo, says: those things which, though not written, the universal Church observes, she received from the Apostles, Christ teaching. The same Augustine in c. Ecclesiasticarū. xj. dist.; and so says the text in c. cū Marthæ. de celeb. missa., on the form of the consecration of the Eucharist. Indeed, many things, as much of the Lord's words as of his deeds, are found to have been omitted by the Evangelists, which the Apostles also are read either to have supplied by word or to have set forth by deed. Such is: that the use of the sign of the cross should be in the Church, and that the faithful ought to be marked with such a sign. For so great is the authority of the Church that Augustine said, in the Epistola fundamenti: I would not believe the Gospel, did not the authority of the Church

<i>Latin</i>	<i>English</i>
	compel me. Although in turn it could be said: I would not believe the Church, did not the authority of sacred Scripture impel me. And thus, in different respects, each mutually confirms the other, as says Gerson. Whence 6. † the third species of heresies would be those which should go against the Catholic truths of this third grade of Catholic truths — namely, those which by the tradition or revelation of the Apostles the universal Church believes and observes. And in this kind, that assertion would be heretical which says that the use of the sign of the cross ought not to be in the Church; whence such truths, and those which can be unchangeably inferred from them by necessary consequence, come to be computed among Catholic truths, and the assertions

<i>Latin</i>	<i>English</i>
	contrary to them are to be judged heretical.
QVARTVS gradus catholicarū ueritatū est eorū quæ ab Ecclesia uniuersali in concilijs plenarijs tanquàm ad fidem Christianæ religionis pertinentia diffinita sunt, licet expresse in canone sacræ scripturæ non inueniantur. Et 7. † ratio huius manifesta est, quia concilia plenaria uniuersalis Ecclesiæ in his quæ fidei sunt, errare non possunt ut bene scribit dictus Card. de potestate Ecclesiæ lib. iij. capitulo. lvij. traditur in c. significasti, de electio. quia quod fit à concilio uidetur factum reuelatione diuina. c. frustra. viij. disti. & optimus tex. in c. si ille. l. disti. ibi, quicquid contra illorum diffinitionem (in quibus Spiritum Sanctū credimus locutum) dictū fuerit, recipere non solum temerarium Sed etiam periculosum esse non dubitatur. Hinc beatus Grego. in c. sicut. disti. xv. ait, sicut sancti Euangelij quatuor libros, sic quatuor concilia suscipere & uenerari me fateor. Et in lib. de catho. ueri. inquit. sicut Deus uerus est, ita ea, quæ apostolica ecclesia de Deo docuit, uera sunt. Vnde merito dicitur prouerbiorum primo. ne dimittas legem matris tuæ idest ecclesiæ,	THE FOURTH grade of Catholic truths is of those which have been defined by the universal Church in plenary councils as pertaining to the faith of the Christian religion, although they are not expressly found in the canon of sacred Scripture. And 7. † the reason for this is manifest, because the plenary councils of the universal Church cannot err in the things which are of the faith, as the said Card. well writes, de potestate Ecclesiæ lib. iij. capitulo. lvij.; it is handed down in c. significasti, de electio., because what is done by a council is seen to be done by divine revelation, c. frustra. viij. disti.; and there is an excellent text in c. si ille. l. disti., there: whatever shall have been said against the definition of those councils (in which we

<i>Latin</i>	<i>English</i>
prout est hæc ueritas, Spiritus Sanctus procedit æternaliter à Patre & Filio. ut est decidum in cōcilio lugdunen. & habetur in c. j. de summa Trini. lib. vj. Et sic de alijs. Et 8. † notāter dictū est, tanquām ad fidem Christianæ religionis pertinentia diffinita sunt, quia ut dicunt Ioannes de Gerso. & dictus Cardi. multa in Ecclesia traduntur. quæ tollerat Ecclesia publice legenda, quę non sunt de necessitate salutis credenda. Sed dumtaxat illa quæ sub diffinitione iudiciali tradit esse credēda, uel opposita reprobando concurrente uniuersali totius Ecclesiæ consensu implicite uel explicite. Et prædicta dicuntur propter multa quæ in Ecclesia legi permittuntur, & tollerantur, quæ omnia credere non est de necessitate salutis, nec inter catholicas ueritates sunt reputādæ, licet multæ earum pie à fidelibus credantur. sicut sunt multa contenta in legendis siue hystorijs sanctorum, & Vitis patrum, quę cum manifeste non cognoscantur falsa esse, Sed potius habere aliquam probabilitatis apparentiam, possunt credi, pro eo ad commouendos pios actus fidelium ad deuotionem proficiunt, secure legūtur, & pie creduntur, dum	believe the Holy Ghost to have spoken), it is not doubted that to receive it is not only rash but even dangerous. Hence blessed Gregory, in c. sicut. disti. xv., says: as the four books of the holy Gospel, so do I confess that I receive and venerate the four councils. And in the book de catho. ueri. he says: as God is true, so the things which the apostolic Church has taught concerning God are true. Whence it is deservedly said in the first chapter of Proverbs: forsake not the law of thy mother — that is, of the Church. Of this sort is this truth: that the Holy Ghost proceeds eternally from the Father and the Son, as was decided in the Council of Lyons, and is found in c. j. de summa Trini. lib. vj. And so of others. And 8. † it was said advisedly, have been defined as pertaining to the faith of

<i>Latin</i>	<i>English</i>
tamen animus assertione pertinaci illis non adhæreat.	the Christian religion, because, as say Ioannes de Gerso. and the said Cardi., many things are handed down in the Church which the Church tolerates to be publicly read, which are not to be believed of the necessity of salvation — but only those which she hands down under judicial definition as things to be believed, or by reprobating their opposites, with the universal consent of the whole Church concurring implicitly or explicitly. And the foregoing things are said on account of the many things which are permitted to be read in the Church and are tolerated, all of which it is not of the necessity of salvation to believe, nor are they to be reckoned among Catholic truths, although many of them are piously believed by the faithful. Such are the many things contained in the legends or

<i>Latin</i>	<i>English</i>
	histories of the saints, and in the Lives of the Fathers, which, since they are not manifestly known to be false, but rather to have some appearance of probability, can be believed; inasmuch as they profit for stirring the pious acts of the faithful unto devotion, they are safely read and piously believed — provided, however, that the mind does not adhere to them with pertinacious assertion.
¶ Vnde 9. † quarta species hēresis est quę ueritatibus huius quarti gradus catholicarum ueritatū ̄diceret, uidelicet diffinitis & determinatis iudicio uniuersalis Ecclesię in concilijs uniuersalibus, ut si diceretur, Spiritum Sanctum non procedere à Patre & Filio ut est decise ut dixi. & habetur in c. de Spiritu Sancto. de consecra. disti. ultima. Et notanter dico in hoc gradu, de diffinitis à concilio generali circa ea quę sunt fidei, quia in his (ut dixi) errare non potest Ecclesia uniuersalis siue concilium generale, nec etiam in moribus, ut late per Petrum exime. in	¶ Whence 9. † the fourth species of heresy is that which should contradict the truths of this fourth grade of Catholic truths — namely, the things defined and determined by the judgment of the universal Church in universal councils; as if it were said that the Holy Ghost does not proceed from the Father and the Son, as was decided, as I have said, and is found in c. de Spiritu Sancto. de consecra. disti.

<i>Latin</i>	<i>English</i>
tracta. de clauibus Ecclesiæ capi. cxli. Sed 10. † in alijs quæ fidem non concernunt, concilium generale forsam errare potest, prout dicitur errasse super matrimonio contrahendo inter Raptorem, & raptam. Et dictum Hieronymi melius sentientis postea fuit prælatum statuto conciliari. ut probatur in c. tria. iuncto. c. placuit. xxxvj. q. ij. & in c. de libellis. in glo. illorum. xx. disti. Abbas in c. significasti. de electio. colu. ij. facit glo. in c. j. de reliquijs & uene. Sancto. lib. vj. scribit Car. Alex. in c. Anastasius. in fi. xix. distin. Car. de Turre crema. in c. secundum Ecclesiæ. eadem disti. Et 11. † pro hoc facit tex. in l. j. §. sed neque. C. de uet. iure. enu. sæpe numero Deus aperit ingenium alicui in aliqua re, ita nō aperuit multis alijs doctoribus & grauioribus. per quem tex. dicunt scribentes in c. capellanus. de ferijs. unus doctor posset conuincere communem opini. melioribus rationibus, & subtilioribus motiuis, Et ideo dicebat Ioan. Andre. in c. j. de consti. communis opinio potest esse erronea, ut ibi late tradunt moderniores. propterea dicit tex. in d. §. sed neq;. sed neq; ex multitudine authorum, quod melius & æquius est iudicatote, cum possit unius	ultima. And advisedly I speak, in this grade, of things defined by a general council concerning those matters which are of the faith, because in these (as I have said) the universal Church, or a general council, cannot err — nor indeed in morals, as at length by Petrus exime. in tracta. de clauibus Ecclesiæ capi. cxli. But 10. † in other things, which do not concern the faith, a general council perhaps can err, as it is said to have erred concerning the contracting of marriage between the ravisher and the ravished woman; and the saying of Jerome, who judged better, was afterwards preferred to the conciliar statute, as is proved in c. tria. iuncto. c. placuit. xxxvj. q. ij. and in c. de libellis. in glo. illorum. xx. disti.; the Abbas in c. significasti. de electio. colu. ij.; the glo. in c. j. de reliquijs & uene. Sancto. lib.

<i>Latin</i>	<i>English</i>
forsam, & deterioris sentētia, multos & maiores in aliqua parte superare.	vj. makes for this; so writes Car. Alex. in c. Anastasius. in fi. xix. distin.; Car. de Turre crema. in c. secundum Ecclesiæ. eadem disti. And 11. † for this makes the text in l. j. §. sed neque. C. de uet. iure. enu., that oftentimes God opens the understanding to someone in some matter, in such wise as he has not opened it to many other and graver doctors. By which text those writing on c. capellanus. de ferijs. say that one doctor could overcome the common opinion by better reasons and subtler motives; and therefore Ioan. Andre. said, in c. j. de consti., that the common opinion can be erroneous, as the more modern writers there hand down at length. Wherefore the text says, in d. §. sed neq;.: but neither from the multitude of authors judge ye what is better and more equitable, since the opinion

<i>Latin</i>	<i>English</i>
	of one, and perhaps of a lesser man, can in some point surpass many and greater men.
QVINTVS 12. † gradus catholicarum ueritatum, est eorū quæ in materia fidei Apostolicæ sedis iudicio diffinita sunt, quæ licet in canone sacræ scripturæ non reperiantur, inter catholicas tamen ueritates computātur. Cuius ratio est, quia Apostolicæ sedis iudicium in his, quæ fidei sunt, errare non potest, pro quo facit Luc. xxij. ego oraui pro te Petre, ut non deficiat fides tua, & tu aliquando confirma fratres tuos. ut scribit Car. in d. tract. lib. ij. cap. cix. quod aperte dicto Augustini confirmatur in c. in canonicis. xix. dist. ubi inter canonicas scripturas cōputandas ponit Epistolas quas ab Apostolica sede habere meruit, & alij meruerunt accipere. Et habetur in c. omnes. eadem. disti. ubi sic dicitur. omnes Apostolicæ sedis sanctiones sic accipiendæ sunt, tāquàm ipsius diuina uoce firmatæ. Et melius in d. c. frustra. & d. c. Ille. & diuus Hieronymus hoc confirmat in cap. hæc est fides. xxiiij. q. j. inquiens. Si hæc nostra confessio Apostolatus tui iudicio approbetur, quicumque me calumniari	THE FIFTH 12. † grade of Catholic truths is of those which in matter of faith have been defined by the judgment of the Apostolic See; which, although they are not found in the canon of sacred Scripture, are nevertheless computed among Catholic truths. The reason whereof is that the judgment of the Apostolic See cannot err in the things which are of the faith; for which makes Luke 22: I have prayed for thee, Peter, that thy faith fail not; and do thou at some time confirm thy brethren — as writes the Card. in d. tract. lib. ij. cap. cix. Which is openly confirmed by the saying of Augustine in c. in canonicis. xix. dist., where among the canonical scriptures to be computed he places the

<i>Latin</i>	<i>English</i>
uoluerit, te imperitum & maliuolum, uel non esse catholicum, sed hæreticum comprobabit, ubi Car. concludit, quòd in his quæ sunt diffinita à summo Pōtifice cum Cardinalibus circa fidem, error subesse non potest. facit. c. arecta. cum sequēti. & d. c. hæc est fides. ea cau. & q. Hinc est quinta species hæresum, earum falsarum assertionum quæ ueritatibus huius quinti gradus ueritatum Catholicarum contrariantur hoc est determinatis & diffinitis Apostolicæ sedis iudicio.	Epistles which it has merited to have from the Apostolic See, and others have merited to receive. And it is found in c. omnes. eadem. disti., where it is thus said: all the sanctions of the Apostolic See are so to be received as though confirmed by his own divine voice. And better in d. c. frustra. and d. c. Ille. And the divine Jerome confirms this in cap. hæc est fides. xxiiij. q. j., saying: If this our confession be approved by the judgment of thy Apostolate, whoever shall wish to calumniate me will prove himself unskilled and malevolent, or not to be Catholic, but a heretic; where the Card. concludes that in those things which have been defined by the supreme Pontiff with the Cardinals concerning the faith, error cannot lie beneath. For this make c. arecta. cum sequēti. and d. c. hæc est fides. ea cau. &

<i>Latin</i>	<i>English</i>
	q. Hence there is the fifth species of heresies: those false assertions which are contrary to the truths of this fifth grade of Catholic truths — that is, to the things determined and defined by the judgment of the Apostolic See.
SEXTVS 13. † gradus ueritatum Catholicarum esse uidetur secundum dictum Cardi. earum quæ de tenenda fide, & confutatione hæreticorum a doctoribus ab uniuersali Ecclesia approbatis assertiue traditæ sunt, licet in Canone Sacre scripturæ expresse non contineātur, quod patet, quoniam cum Ecclesia uniuersalis quæ regitur Spiritu Sancto doctores aliquos approbauerit, eorum doctrinam recipiens, necesse est ut talium doctrina assertiue posita, & nunq̃ alias retractata uera sit, & ab omnibus fidelibus firma credulitate tenenda in ea parte in qua ab uniuersali Ecclesia est recepta, alias uniuersalis Ecclesia uideretur errasse approbando & acceptando eorum doctrinam tanquàm ueram quæ tamen uera non esset. Qui 14. † autē sint hij doctores quorum doctrina approbata est, colligitur ex tex.	THE SIXTH 13. † grade of Catholic truths seems, according to the said Cardi., to be of those which, concerning the faith to be held and the confutation of heretics, have been assertively handed down by doctors approved by the universal Church, although they are not expressly contained in the canon of sacred Scripture. Which is evident, since, when the universal Church, which is ruled by the Holy Ghost, has approved certain doctors, receiving their doctrine, it is necessary that the doctrine of such men, assertively set down and never elsewhere

<i>Latin</i>	<i>English</i>
in c. gloriosus Deus. de reliquijs & Vene. Sanctorum. libr. vj. ubi referuntur Gregorius, Augustinus, Ambrosius, & Hieronymus. quorum doctorum (vt ibi dicitur) perlucida & salutaria documēta Ecclesiam illustrarunt, idem habetur in c. Sancta Romana Ecclesia. xv. disti. & dixit. S. Tho. contra gentiles. lib. iiij. c. xxiiij. in determinatione quinti concilij habetur, sequimur per omnia sanctos patres & doctores Ecclesiæ. Athanasiū, Gregorium Theologum, Gregorium Nicenum, Ambrosium, Angustinum, Teophilum, Ioannem Constantinopolitanum, Cyrillum, Leonem primum, & suscipimus omnia quæ de recta fide & damnatione hæreticorum exposuerunt, ut ibi per eum.	retracted, be true, and be held by all the faithful with firm belief in that part in which it has been received by the universal Church; otherwise the universal Church would seem to have erred in approving and accepting as true their doctrine which nevertheless was not true. But 14. † who these doctors are whose doctrine has been approved is gathered from the text in c. gloriosus Deus. de reliquijs & Vene. Sanctorum. libr. vj., where are mentioned Gregory, Augustine, Ambrose, and Jerome; the most lucid and salutary teachings of which doctors (as is there said) have illumined the Church. The same is found in c. Sancta Romana Ecclesia. xv. disti.; and S. Tho. said, contra gentiles. lib. iiij. c. xxiiij., that in the determination of the fifth council it is found: we follow in all things the

<i>Latin</i>	<i>English</i>
	holy fathers and doctors of the Church — Athanasius, Gregory the Theologian, Gregory of Nyssa, Ambrose, Augustine, Theophilus, John of Constantinople, Cyril, Leo the First — and we receive all the things which they expounded concerning the right faith and the condemnation of heretics; as there by him.
SEPTIMVS gradus catholicarum veritatum est earum quæ ex quarto, quinto, & sexto gradu catholicarū ueritatū consequentia necessaria, & formali inferri pñt. necessaria & formali consequentia dico, quia si aliquid solū probabili cōsequētia inferretur nō dicerē proprie veritas catholica sed probabilis: Dixit 15. † aūt Aristo. illud est probabile qđ oībus, & maxime sapientibus verum apparet, non autem illud quod indoctis videtur esse verum. dixit probabile, cum stultorum infinitus sit numerus. Ecclesi. primo. Vnde illa assertio esset hæretica quæ veritatibus catholicis septimi gradus catholicarum veritatum contradicit, quæ ex quarto, quinto, & sexto gradu catholicarum ueritatum necessaria &	THE SEVENTH grade of Catholic truths is of those which can be inferred by necessary and formal consequence from the fourth, fifth, and sixth grade of Catholic truths. I say by necessary and formal consequence, because if something were inferred only by probable consequence, it would not properly be called a Catholic truth, but a probable one. Now 15. † Aristotle said: that is probable which appears true to all, and especially to the wise — not, however,

<i>Latin</i>	<i>English</i>
formali consequentia inferuntur, & de his habes exempla supra in iiij. q.	that which seems true to the unlearned. He said probable, since the number of fools is infinite, Ecclesiastes 1. Whence that assertion would be heretical which contradicts the Catholic truths of the seventh grade of Catholic truths, which are inferred by necessary and formal consequence from the fourth, fifth, and sixth grade of Catholic truths; and of these you have examples above in the fourth question.
¶ OCTAVVS 16. † & vlti. gradus veritatū est, qui quī nō sit, proprie loquēdo, veritas catholica, est nihilominus catholicā veritatē sapiens, pro quāto veritatibus Catholicis est propinquus. vnde veritas sapiēs catholicam veritatem est illa, quæ adiuncta sibi aliqua veritate ad fidem non pertinente, quæ tamen rationabiliter negari non potest, sequitur veritas catholica. Exempli gratia, quia nūc in Apostolica sede sedet Ioannesmaria de Monte, de generosa & nobilissima familia, ista propositio Ioannesmaria de Monte est Papa, est propositio sapiens	¶ THE EIGHTH 16. † and last grade of truths is that which, although it is not, properly speaking, Catholic truth, is nonetheless savoring of Catholic truth, inasmuch as it is near to Catholic truths. Whence a truth savoring of Catholic truth is that from which — some truth being joined to it not pertaining to the faith, which nevertheless cannot reasonably be denied — a Catholic truth follows. For

<i>Latin</i>	<i>English</i>
veritatem catholicam, patet, quoniam adiuncta sibi illa veritate, quæ negari non potest, quòd fuerit rite & canonice electus, vt puta a toto dominorum Cardinalium collegio, vel a duabus partibus, efficitur veritas catholica, dicendo, Dominus Ioannesmaria de Monte rite, & canonice electus, & in Papam ab vniuersali Ecclesia susceptus, est verus Papa ex determinatione vniuersalis Ecclesię. ca. in nomine domini. xxij. distin. c. de euitanda. de electio. c. vbi periculum, eod. titu. lib. vj. & in concilio Constantiensi cautum est quòd Papa canonice electus qui pro tempore fuerit, eius nomine proprio expresso sit successor beati Petri, habens auctoritatem supremā in Ecclesia Dei. Et 17. † dicta assertio negatiue concepta, quòd non est verus Papa, est assertio hæresim sapiens, vt dixit Ioan. de Gerso. in d. tracta. in prima parte, vnde distinguuntur quædam species falsæ assertionis, vel assertionum, quæ si absolute hæreticæ non sunt, sunt tamen hæresi propinquæ, qualis est quæ asserit dogma peruersum, ex quo cum notorio vero, quod negari nō potest, sequitur hæresis proprie dicta, vt infra dicam, vbi tractabo species falsarum assertionum &	example: since now in the Apostolic See sits Ioannesmaria de Monte, of a generous and most noble family, this proposition, Ioannesmaria de Monte is Pope, is a proposition savoring of Catholic truth. This is evident, since, joined with that truth which cannot be denied — that he was duly and canonically elected, as for instance by the whole college of the lord Cardinals, or by two parts thereof — it becomes a Catholic truth, by saying: The lord Ioannesmaria de Monte, duly and canonically elected, and received as Pope by the universal Church, is true Pope by determination of the universal Church. ca. in nomine domini. xxij. distin. c. de euitanda. de electio. c. vbi periculum, eod. titu. lib. vj. And in the Council of Constance it was provided that the canonically elected Pope for the time being, his

<i>Latin</i>	<i>English</i>
damnabilium. Et 18. † sic ex prædictis facile erit cognoscere veritates omnes habere suos gradus, & non esse eiusdem naturæ, Sed diuersorum generum & graduum, quædam enim sunt catholicæ, quædam catholicam veritatem sapientes, quædam probabiles tātum, quædam pie credibiles, & quædam impertinentes, vt inferius dicam. Et econtrario cognoscentur species hæresum in quo gradu ponantur, singula suis contrarijs referēdo. Ex quibus patet quòd omnis error qui contradicit aperte prædictis veritatibus catholicis vel alteri earum directe, vel in bona & necessaria consequentia, est hæresis damnata explicite, & quàm cito constaret aliquem tali errori pertinaciter adhærere, esset hæreticus reputandus, Et contra talem ut contra hæreticum posset Episcopus uel inquisitor procedere, iuxta. c. ad abolendam. in princip. de hære.	proper name being expressed, is the successor of blessed Peter, having supreme authority in the Church of God. And 17. † the said assertion conceived negatively — that he is not true Pope — is an assertion savoring of heresy, as said Ioan. de Gerso. in the said tract, in the first part; whence certain species of false assertion, or assertions, are distinguished which, if they are not absolutely heretical, are nevertheless near to heresy — such as that which asserts a perverse dogma from which, with a notorious truth which cannot be denied, there follows heresy properly so called, as I shall say below, where I shall treat the species of false and damnable assertions. And 18. † thus from the foregoing it will be easy to know that all truths have their grades, and are not of the same nature, but of diverse kinds and

<i>Latin</i>	<i>English</i>
	grades; for some are Catholic, some savoring of Catholic truth, some only probable, some piously credible, and some impertinent, as I shall say below. And contrariwise the species of heresies will be known — in what grade they are to be placed — by referring each to its contraries. From which it is evident that every error which openly contradicts the aforesaid Catholic truths, or any one of them, directly or in good and necessary consequence, is a heresy condemned explicitly; and as soon as it should be established that someone pertinaciously adheres to such an error, he would be to be reckoned a heretic; and against such a one, as against a heretic, the Bishop or the inquisitor could proceed, according to c. ad abolendam. in princip. de hære.

<i>Latin</i>	<i>English</i>
{Here ends Q. 5. On the same page (fol. 15v) follows the <i>SVMMARIVM</i> of the next quaestio (its item 1: <i>Assertio hæretica quæ sit.</i>) and the heading <i>SEXTA QVAESTIO</i>, opening: “<i>SEXTO. † Quæro quot sunt species falsarum seu damnabilium assertionum. Respōdeo plures, ut ex illico dicendis apparebit.</i>” — not transcribed.}	{Here ends Q. 5. On the same page (fol. 15v) follows the <i>SUMMARY</i> of the next quaestio (its item 1: <i>What a heretical assertion is.</i>) and the heading <i>SIXTH QUESTION</i>, opening: “<i>SIXTHLY. † I ask how many are the species of false or damnable assertions. I answer: several, as will appear from what is straightway to be said.</i>” — not transcribed.}
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UNIT 2 — NONA QVAESTIO (ad quem spectat autoritate iudiciali & suprema diffinire assertionem esse catholicam uel hæreticam), fols. 26r–29v	UNIT 2 — NINTH QUESTION (to whom it belongs, by judicial and supreme authority, to define an assertion to be Catholic or heretical), fols. 26r–29v
<i>SVMMARIVM.</i> <i>1 Dubia fidei quis potest determinare. 2 Ecclesia apostolica nunquam hæreticauit. 3 Papa determinat ea, quæ ad fidem spectant. 4 Papa edit symbolum, & generalem synodum conuocat. 5 Doctorum sanctorum</i>	<i>SUMMARY.</i> <i>1 Who can determine doubts of the faith. 2 The apostolic Church has never fallen into heresy. 3 The Pope determines the things which pertain to the faith. 4 The</i>

<i>Latin</i>	<i>English</i>
<i>authoritas præualet authoritati ecclesiæ.</i> 6 <i>Petrus diffinit quæstionem de non</i> <i>obseruandis cerimonijs legis.</i> 7 <i>Petrus</i> <i>comparatur Moysi in determinandis</i> <i>causis.</i> 8 <i>Petrus primatum habuit</i> <i>ecclesiæ fidei & hodie Papa.</i> 9 <i>Hæresim</i> <i>damnatam ab ecclesia particulari tenens</i> <i>non est excommunicatus nec hæreticus.</i> 10 <i>Papa non facit ueritatem catholicam,</i> <i>nec hæresim, sed declarat.</i> 11 <i>Papam</i> <i>posse errare in his quæ sunt fidei</i> <i>secundum Abba. & ocham.</i> 12 <i>Papa ut</i> <i>singularis persona potest errare contra</i> <i>fidem.</i> 13 <i>Papa ut Papa in diffinitione</i> <i>iudiciali non potest errare contra fidem.</i>	<i>Pope puts forth the creed,</i> <i>and convokes a general</i> <i>synod.</i> 5 <i>The authority of the</i> <i>holy doctors prevails over</i> <i>the authority of the church.</i> 6 <i>Peter defines the question</i> <i>concerning the non-</i> <i>observance of the</i> <i>ceremonies of the law.</i> 7 <i>Peter is compared to Moses</i> <i>in the determining of causes.</i> 8 <i>Peter held the primacy of</i> <i>the church in the faith, and</i> <i>today the Pope.</i> 9 <i>He who</i> <i>holds a heresy condemned by</i> <i>a particular church is not</i> <i>excommunicated, nor a</i> <i>heretic.</i> 10 <i>The Pope does</i> <i>not make Catholic truth, nor</i> <i>heresy, but declares it.</i> 11 <i>That the Pope can err in the</i> <i>things which are of the faith,</i> <i>according to Abba. and</i> <i>Ocham.</i> 12 <i>The Pope as a</i> <i>singular person can err</i> <i>against the faith.</i> 13 <i>The</i> <i>Pope as Pope, in judicial</i> <i>definition, cannot err against</i> <i>the faith.</i>

<i>Latin</i>	<i>English</i>
14 Concilium generale in fide non potest errare. 15 Consilium authoris editum in causa Reginæ Anglicanæ. 16 Concilium generale quare conuocatur ad determinationem causarum fidei si Papa hoc posset solus. 17 Concilia generalia congregari pro causis fidei utilissimum est, non autem necessarium. 18 Glo. Intellectus in c. Anastasius. xix dist. 19 Opinio plurimorum maximam habet auctoritatem, & præsumptionem. 20 Concilij generalis congregatio ad Papam regulariter spectat. 21 Papa, & imperator debent semper habere in suo consilio homines doctos et sapientes.	14 A general council cannot err in the faith. 15 The consilium of the author published in the cause of the Queen of England. 16 Why a general council is convoked for the determination of causes of the faith, if the Pope could do this alone. 17 That general councils be gathered for causes of the faith is most useful, but not necessary. 18 The understanding of the glo. in c. Anastasius. xix dist. 19 The opinion of the greater number has the greatest authority and presumption. 20 The convocation of a general council regularly belongs to the Pope. 21 The Pope and the emperor ought always to have in their counsel learned and wise men.
NONA QVAESTIO.	NINTH QUESTION.
NOno 1. † Quæro, ad quem spectat, auctoritate iudiciali & suprema diffinire aliquā assertionem esse catholicam uel hæreticā, & sic dubia fidei terminare.	NINTHLY 1. † I ask: to whom does it belong, by judicial and supreme authority, to define that some

<i>Latin</i>	<i>English</i>
Rñdeo, ad summum pontificem, eiusque sanctam sedem Apostolicam hæc determinatio & diffinitio spectat, cuius fides nunq̄ pōt deficere, q̄a Petro Aṗlo in ea præsidenti dictū est, oraui pro te Petre ut non deficiat fides tua. Luca. 22. & in c. maiores, in prin. de baptismo. Hæc 2. † enim sancta & apostolica m̄ omnium ecclesiarum Christi ecclesia, per Dei omnipotentis gratiam, a, tramite Apostolicæ traditionis nunq̄ errasse probatur, nec hæreticis prauitatibus deprauanda succubuit. c. a, recta 24. q. j. in his ergo, quæ fidei sunt errare non potest. & illum tex. ad hoc allegat Abbas. in c. a nobis. 2. col. j. de sen. excommu. facit. c. pudenda. 24. q. 1. glo. in c. j. de translatio. Episc. & in c. j. de reliquijs & uene. sanctorum. Decius in c. significasti. de electio. hinc dicit Ciprianus, qui cathedram Petri, super qua fundata est ecclesia, deserit, In ecclesia se esse non confidat. c. qui cathedram. xcij. di. Dicitque 3. † S. Tho. in 2. 2. q. xj. arti. ij. ad iij. hæc autoritas determinādi ea quæ sunt fidei principaliter residet in summo pontifice, & pro hoc allegat d. c. quotiens. xxiiij. q. j. ubi dicitur. quotiens ratio fidei uentilatur non nisi ad Petrum. i. sui	assertion is Catholic or heretical, and thus to terminate doubts of the faith? I answer that this determination and definition belongs to the supreme pontiff and to his holy Apostolic See, whose faith can never fail, because to Peter the Apostle, presiding in it, it was said: I have prayed for thee, Peter, that thy faith fail not. Luke 22, and in c. maiores, in prin. de baptismo. For 2. † this holy and apostolic church, mother of all the churches of Christ, is proved, through the grace of almighty God, never to have strayed from the path of Apostolic tradition, nor has she succumbed, to be depraved by heretical prauities. c. a, recta 24. q. j. In those things, therefore, which are of the faith she cannot err. And the Abbas alleges that text to this purpose in c. a nobis. 2. col. j. de sen. excommu.;

<i>Latin</i>	<i>English</i>
nominis honorem & auctoritatem habenti recurrendum, & dicit idem. S. Thom. in opusculo contra Græcos capitulo lxxvii. ad Papam pertinet quæ fidei sunt determinare, pro quo allegat Cirilium patriarcham Hierosolimitanum in libro thesaurorum. inquietem, ut membra maneamus in capite nostro apostolico throno Romanorum pontificum, a quo nostrum est quærere, quid credere, & quid tenere debeamus, & etiam dicebat Maximus in epistola ad orientales directa coadunatam, & fundatam super petram confessionis Petri dicimus uniuersalem ecclesiam, secundum diffinitionem Saluatoris, in qua necessarium saluti animarum nostrarum est remanere, & ei etiam obedire, suam seruantes fidem & confessionem. Et 4. † dicit S. Thom. in 2. 2. q. 1. arti. ultimo in corpore quæstionis, ad solam auctoritatem summi pontificis pertinet noua editio symboli, sicut & omnia alia, quæ pertinent ad totam ecclesiam, ut congregare sinodum generalem, & alia hñoi, Papa. n. in his rectissimus est ꝑp assistentiā Spūs Sancti in iudicio fidei, ꝑp uniuersale bonum fidei sicut promisit Ioan. 14. Spūs Sanctus docebit	c. pudenda. 24. q. 1. makes for this; the glo. in c. j. de translatio. Episc. and in c. j. de reliquijs & uene. sanctorum.; Decius in c. significasti. de electio. Hence Cyprian says: he who deserts the chair of Peter, upon which the church is founded, let him not trust that he is in the church. c. qui cathedram. xciiij. di. And 3. † S. Tho. says, in 2. 2. q. xj. arti. ij. ad iij., that this authority of determining the things which are of the faith resides principally in the supreme pontiff; and for this he alleges d. c. quotiens. xxiiij. q. j., where it is said: as often as a matter of the faith is ventilated, recourse must be had to none but Peter — that is, to him who has the honor and authority of his name. And the same S. Thom. says, in the opusculum contra Græcos, capitulo lxxvii., that it pertains to the Pope to

<i>Latin</i>	<i>English</i>
uos oēm ueritatē, & Petro dixit, Ego rogauī pro te &c. Et 5. † ita concludit. d. Card de uio in tracta. de autho. Papæ & conciliorum. c. ix. contra cuius summi Pontificis auctoritatem, nec Hieronymus, nec Augustinus, nec aliquis sanctorum, suam sententiam defendit. unde Hieronymus ad Damasum Papam, hanc firmans conclusionē inquit. Hæc est fides Beatissime pater, quam in catholica didicimus Ecclesia, In qua si minus perite, aut parum caute forte aliquid positum est emendari cupio a te qui Petri fidem & sedem tenes, si aut̃ hæc nostra cōfessio apostolatus tui iudicio comprobabitur, q̃cūque me culpare uoluerit se imperitū, uel maliuolū, uel ēt nō catholicū, non me hæreticū cōprobauerit, ut ponitur in c. Hæc est fides. 24. q. j. ubi Car. concludit Papa qui est caput ecclesia, magister, & dux populi Christiani, non potest errare in his quæ de fide tenenda & credenda Apostolatus sui officio publice populo Christiano decerneret, siue diffiniret esse credenda, & tenenda. Quod 6. † etiam comprobatur, quia quæstionem de non obseruandis legalibus, Petrus diffiniuit, & Iacobus diffinitionem illam promulgauit. actuum decimoquinto ibi,	determine the things which are of the faith; for which he alleges Cyril, patriarch of Jerusalem, in libro thesaurorum, saying: that we may remain as members in our head, the apostolic throne of the Roman pontiffs, from whom it is ours to ask what we ought to believe and what to hold. And Maximus also said, in the epistle directed to the Orientals: we say that the universal church is united and founded upon the rock of Peter's confession, according to the definition of the Saviour; in which it is necessary for the salvation of our souls to remain, and also to obey her, keeping her faith and confession. And 4. † S. Thom. says, in 2. 2. q. 1. arti. ultimo, in the body of the question, that to the sole authority of the supreme pontiff pertains a new edition of the creed, as also all other things which pertain to the

<i>Latin</i>	<i>English</i>
cum autem magna conquisitio fieret. surgens Petrus dixit. ubi gloss. interlinearis dicit, præ omnibus quasi Princeps loquitur, ita ut inquit Hieronymus, quod Petrus princeps fuerat illius decreti, legem post Euangelium non esse obseruandam, inde secuta est constitutio Ecclesiæ, in qua damnatur hæresis quæ perperam affirmabat legem cum Euangelio, circumcisionem cum Baptismo seruandam. capitul. maiores. de baptismo. quia secundum Apostolum ad Galat. v. Si circumcidimini, Christus nihil proderit uobis. Et 7. † de ipsa Romana Ecclesia dicimus quod est mater fidei. capitulo omnes. xxij. distinctio. cuius determinationi standum est. capitulo enim uero. xix. distinct. & sicut Moises Dux & Rector Iudæorum fuit, Sic Papa Christianorum. Vt inquit sanctus Bernardus ad Euge. libro 2. capitulo vij. sic enim legitur Exodi decimooctauo esto in populo in his quæ ad Deum pertinēt ut ostendas cerimonias & ritum colendi Deum, Et sequitur, quicquid autem maius fuerit referant ad te, ut ipsi minora tantum iudicent. Sicut igitur oēs quæstiones emergentes a lege, & cultu Dei reseruabantur Moisi determinandæ, sic omnia quæ fidei sunt	whole church, such as to gather a general synod, and other things of this kind; for the Pope in these things is most right, on account of the assistance of the Holy Ghost in the judgment of faith, on account of the universal good of the faith, as he promised, John 14: the Holy Ghost will teach you all truth; and to Peter he said: I have prayed for thee, etc. And 5. † so concludes the said Card. de uiro, in tracta. de autho. Papæ & conciliorum. c. ix.: against the authority of which supreme Pontiff neither Jerome, nor Augustine, nor any of the saints defended his own opinion. Whence Jerome, to Pope Damasus, confirming this conclusion, says: This is the faith, most blessed father, which we have learned in the Catholic Church; in which if perhaps something has been set down less skillfully or with too

<i>Latin</i>	<i>English</i>
Christianæ reseruantur Romano pontifici definienda, & mandanda teneri, & obseruari. Vt probatur in d. c. maiores. Scribit Card. de Turre Crema. in d. tracta. de potestate Papæ. li. 2. capitulo 107. Et 8. † pro hoc est, cum Christus alijs discipulis imperasset ut laxarent retia in mare, soli Petro dixit, duc in altum. Lucæ xv. hoc est in profundum disputationum, ut glosauit Ambrosius in c. non turbatur. 24. q. 1. ad ipsum enim pontificem, tanquam primatum Ecclesiæ tenentem pertinet fidei causas lucida sententia terminare, ut in d. c. hæc est fides, & plura de his tradit Andre. Siculus in consi. 1. incipien. ex sacris excellentiæ. colum. 12. lib. pri. & Augustinus de Ancho. in tracta. de potestate Papæ q. x. articu. ij. Et dicit Petrus de Palude in iiij. q. iiij. quod ad solum Papam pertinet determinare generaliter quid est hæreticum & quid catholicū. Nec est 9. † excommunicatus a iure, qui tenet illud, quod una Ecclesia particularis iudicat hæreticum, Sed qui firmiter adhæret ei quod ecclesia uniuersalis, uel Romana diffiniuit esse hæreticum, ad quam hoc pertinet, quia quamdiu homo adhæret fidei Ecclesiæ Romanæ, licet	little caution, I desire it to be amended by thee, who holdest the faith and the see of Peter; but if this our confession be approved by the judgment of thy apostolate, whoever shall wish to blame me will prove himself unskilled, or malevolent, or even not Catholic — not me a heretic; as it is set down in c. Hæc est fides. 24. q. j., where the Card. concludes that the Pope, who is the head of the church, the master and leader of the Christian people, cannot err in those things which, concerning the faith to be held and believed, he should by the office of his Apostolate publicly decree to the Christian people, or should define to be believed and held. Which 6. † is also proved, because the question concerning the non-observance of the legal ceremonies Peter defined, and James promulgated that

<i>Latin</i>	<i>English</i>
quæcunque alia Ecclesia teneat oppositum, nunquàm est hæreticus. c. damnamus in fide. de summa Trinita. quia illa errare non potest in his quæ ad fidem pertinēt, secus in alijs, ut scribit. S. Tho. in quoli. 8. q. 16. Sed omnis alia Ecclesia errare pōt sicut tota Ecclesia Gręcorū, vñ determinans cōtra tales articulos alicuius Ecclesiæ particularis non incurrit sñiam iuris. & idem est dicendum de articulis damnatis parisijs ut contra illos tenens, non incurrat excommunicationem iuris, sicut incurrūt oēs hæretici ab Ecclesia Romana damnati. ut in d. c. ad abolendam. non obstat, in eo quod dicit illos hæreticos quos Epī iudicauerint, quia intelligitur de hæreticis tenentibus hæreses ab Ecclesia Romana damnatas, ut supra dixi, pro ut intelligit gl. in d. c. quotiens, & de quibus plura dicit August. de Ancho. in d. q. x. idem concludit Bonifacius de uitallinis in cle. ad nostrum. col. pe. de hæreticis, & aliud est condemnare errantem circa articulos fidei, quod Ep̄s pōt, ut in d. c. ad abolendam. aliud est determinare quid iuris est cū de articulis fidei dubitatur. ut in d. c. maiores. per Collecta. Et 10. † Papa declarando seu approbando aliquam ueritatem	definition; in the fifteenth of Acts, there: And when there had been much disputing, Peter, rising up, said. Where the interlinear gloss says: before all, he speaks as Prince; so that, as Jerome says, Peter had been the prince of that decree, that the law after the Gospel is not to be observed; thence followed the constitution of the Church in which is condemned the heresy which wrongly affirmed that the law was to be observed together with the Gospel, circumcision with Baptism. capitul. maiores. de baptismo. Because, according to the Apostle, Galatians 5: If you be circumcised, Christ shall profit you nothing. And 7. † of the Roman Church herself we say that she is the mother of the faith. capitulo omnes. xxij. distinctio. By whose determination one must stand. capitulo enim uero.

<i>Latin</i>	<i>English</i>
Catholicam, non eam de nouo catholicam, nec damnando errorem facit de nouo hæresim, Sed determinat de nouo illam ueritatem dudum antea fuisse catholicam, & errorem illum dudum antea fuisse hæresim. pro ut latius dixi supra in prima quæst. in fin. in rubr. de hæret. lib. 6. quæst. j. Nec mihi placet, quod Occham in dialogo suo. parte j. li ij. c. xiiij. inquit, dum sentit summum Pontificem posse errare in diffinitione eorum quæ sunt fidei, & cum eo uidetur concordare Abbas iu cap. significasti. de electio. ubi non solum tenet Papam posse errare in talium diffinitione, Sed etiam concilium generale, nō autem uniuersalis Ecclesia errare posset, quæ est collectio omnium fidelium, ut ibi per eum. & in disputatione incipien. Episcopus & rector. nu. 21. Sed sicut a theorica dicti Abbatis circa hoc est maxime cauendum, ut inquit. D. Thom. de uio car. in Apostillis ad. S. Thom. in ij. ij. quæst. xj. articu. 2. Sic ab his quæ Occham dicit, nam male sapuit de potestate summi Pontificis, ut dicit Archidia. Flo. in iij. parte suæ croni. titu. xxiiij. capitulo 8. §. 2. Quia 12. † quo ad personam Papæ est aduertendum, quia licet ipse in quantum est singularis	xix. distinct. And as Moses was the Leader and Ruler of the Jews, so is the Pope of the Christians, as says saint Bernard, ad Euge. libro 2. capitulo vij. For so it is read in the eighteenth of Exodus: be thou to the people in those things which pertain to God, that thou mayest show the ceremonies and the rite of worshipping God. And there follows: but whatsoever is greater let them refer to thee, that they themselves may judge only the lesser matters. As therefore all questions emerging from the law and the worship of God were reserved to Moses to be determined, so all things which are of the Christian faith are reserved to the Roman pontiff to be defined, and to be commanded to be held and observed, as is proved in d. c. maiores. So writes Cardi. de Turre Crema. in d. tracta. de potestate Papæ. li. 2. capitulo

<i>Latin</i>	<i>English</i>
persona, errare possit, & sic esse hæreticus, ut in c. si Papa. xl. distinct. sicut Papa Anastasius. ut in c. Anastasius. xix. distinct. & Simachus. c. incompetenter. §. cum Balaam. 2. q. 7. sic Marcellinus qui adoravit Idola. ut in ca. nunc autem. xxj. di. & legitur in Cronicis de Siluestro Papa secūdo qui fecerat Homagiū diabolo quem existens Papa consuluit. Vt scribit Anto. in ij. parte suæ Cronicæ, Titulo xvj. §. xvij. & sic de alijs, qui hac labe fuerunt polluti, quia homines sunt, & infirmatibus subiacent, sicut & alij. Vt testatur Pau. ad Hæbreos 7. inquires, omnis Pontifex ex hominibus assumptus pro hominibus constituitur, In his quæ sunt a Deū, ut offerat Deo sacrificia pro peccatis, & qui condolere possit his qui ignorant & errant, qm̄ & ipse circundatus est infirmitate. Tamen 13. † in ea diffinitione quam facit eorū quæ sunt fidei ita, a, Deo gubernatur ut non possit iudicialiter errare. ut late scribit Car. in d. c. hæc est fides. & in hac sn̄ia residet præfatus D. Cardi. de vio. in tractatu suo de authori. Papæ & conciliorum. capitulo 8. dū inquit, certum esse, Papa quia est una singularis persona, magis potest in fide	107. And 8. † for this there is the fact that, when Christ had commanded the other disciples to let down their nets into the sea, to Peter alone he said: launch out into the deep. Luke 15. That is, into the depth of disputations, as Ambrose glossed in c. non turbatur. 24. q. 1. For to the pontiff himself, as holding the primacy of the Church, it pertains to terminate causes of the faith by a lucid sentence, as in d. c. hæc est fides; and more on these matters is handed down by Andre. Siculus in consi. 1. incipien. ex sacris excellentiæ. colum. 12. lib. pri., and by Augustinus de Ancho. in tracta. de potestate Papæ q. x. articu. ij. And Petrus de Palude says, in iiij. q. iij., that to the Pope alone it pertains to determine generally what is heretical and what Catholic. Nor is he 9. † excommunicated by the

Latin

errare errore personali, q̄ totum residuum Ecclesiæ, non est propositū nostrū, quia de tali errore non est nostra q̄ō. errore autem iudiciali in decernendis & determinandis his quæ fidei sunt est econuerso errare non possit, quia magis pōt errare communitas Ecclesiæ sine autoritate Papæ, q̄ Papa. Et licet aliqui nixi fuerint hoc impugnare, efficaciter ipse defendit in apologia sua in ij. parte ca. xiiij. Qd̄ **14.** † autem concilium generale perfectum errare non possit in his quæ sunt fidei, scribit Card. de Turre. Crema. in suo tracta. de potestate Ecclesi. lib. 3. cap. 58. & in ca. cum secundum. xix. distinct. & Iacobus Almein. in lib. de suprema potestate. capitulo. xvij. ubi efficacibus rationibus confutat ea quę scribit Abbas Pano. in d. c. significasti. de electio. in iij. sententiarum. distin. xxiiij. q. j. circa finem. De **15.** † cuius summi Pontificis potestate suprema aliqua scripsi in consi. quod nuper edidi super dubiis pluribus, & signanter super illo cum alijs uentilatur Romæ coram summo Pōtifice Clemente Septimo inter Illustrissimum Henricum octauum Regē Angliæ, & Serenissimam D. Catherinam eius honestissimam coniugem præclarissimis

English

law who holds that which one particular Church judges heretical, but he who firmly adheres to that which the universal Church, or the Roman, has defined to be heretical — to which this pertains; because so long as a man adheres to the faith of the Roman Church, although any other Church whatsoever holds the opposite, he is never a heretic. c. damnamus in fide. de summa Trinita. Because she cannot err in the things which pertain to the faith — otherwise in other things — as writes S. Tho. in quoli. 8. q. 16. But every other Church can err, as the whole Church of the Greeks; whence he who determines against such articles of some particular Church does not incur the sentence of the law. And the same is to be said of the articles condemned at Paris: that he who holds against them does not incur the excommunication of the

<i>Latin</i>	<i>English</i>
uirtutibus ornatam, est an primus affinitatis gradus inter eosdem coniuges contractus ob Matrimonium olim initum ab eadem domina, cū Arturo fratre dicti Henrici sine liberis defuncto sit iure diuino prohibitus, ubi plurimis fundamentis firmaui partem negatiuam, quam omni iure comprobauī, & esto aliqui id uellent calumniari, uel saltem ambiguū reputare fuit clarissimis rationibus iuribusque ostensum, ex causa canonica facti, quę tunc aderat, potuisse Iulium Papam ij. circa obstaculum dictę affinitatis dispensare, quę dubia iubente Cæsare nostro sp̄ Augusto, ad me transmissa fuere, ut de ueritate responderem, quod incipit, Maximi ponderis est hæc causa. de qua arbitror excellentes doctores totius orbis esse consulendos, ideo inter illorum consilia erit hoc meum sicut formica ante elephantem. qua cā feliciter decisa, in lucē cum aliis meis prodijt, postq̄ ab eodem Cæsari suis sacris literis Mandrili ad me datis acceptum approbatumque fuisse cōstat. Sed 16. † contra prædicta vr̄ facere gl. notabilis & forsan singularis in c. Anastasius xix. di. dicens ubi de fide agitur. Papa dēt requirere consilium Episcoporum, quod maxime suadetur	law, as do all heretics condemned by the Roman Church, as in d. c. ad abolendam. Which does not stand in the way, in that it calls those men heretics whom the Bishops shall have judged such, because it is understood of heretics holding heresies condemned by the Roman Church, as I said above, according as the gl. understands in d. c. quotiens; and of these things August. de Ancho. says more in d. q. x.; the same is concluded by Bonifacius de uitallinis in cle. ad nostrum. col. pe. de hæreticis. And it is one thing to condemn one who errs concerning the articles of the faith — which a Bishop can do, as in d. c. ad abolendam.; it is another to determine what the law is when there is doubt concerning the articles of the faith — as in d. c. maiores. per Collecta. And 10. † the Pope, by

<i>Latin</i>	<i>English</i>
quia si solus Papa posset determinare ea quæ sunt fidei, & eius sñiæ staretur, ad quid illa solemnita quatuor fuerunt congregata. s. Nicenum, Constantinopolitanum, Ephæsinum, & Calcedonense, quæ Gregorius dicit se uenerari, sicut quatuor Euangelij libros, & fuerunt ad determinationem eorum quæ fuerunt fidei catholicæ congregata, de quibus in c. sicut. xv. di. nam frustra fit per plura potest fieri per pauciora & difficilior expediriur negocia a pluribus, q̄ a paucioribus. inde uersus segnius expediunt commissa negocia plures, ut est tex. iuncta gl. in l. decreto. §. fi. e. ti. & dicit Bal. in l. cuius. ff. de curatore furiosi. per illum tex. iurisdō dēt exerceri per primogenitum, & sic per unum, quia pluralitas ingerit difficultatem. ut in l. ij. §. nouissime. ff. de origine iuris. & est optimum argumentū in c. j. de hære. li. 6. Ad 17. † hæc dico, congregatio generalium conciliorum magnam utilitatem attulit in Ecclesia primitiua, in eo multas hæreses concilia hæc extirpauerunt. ut in c. canones. xv. di. quod patet etiam in illo concilio Apostolorum habito actuum xv. quia cum grandi maturitate aguntur quæ in talibus conciliis fiunt. c. quibus.	declaring or approving some Catholic truth, does not make it Catholic anew, nor by condemning an error does he make a heresy anew; but he determines anew that that truth was Catholic long before, and that that error was heresy long before; according as I said more at length above in the first question, at the end, in rubr. de hæret. lib. 6. quæst. j. Nor does that please me which Occham says in his dialogue, parte j. li ij. c. xiiij., when he holds that the supreme Pontiff can err in the definition of the things which are of the faith; and with him the Abbas seems to agree in cap. significasti. de electio., where he holds not only that the Pope can err in the definition of such things, but even a general council — but that the universal Church, which is the collection of all the faithful, could not err — as there by

<i>Latin</i>	<i>English</i>
xx. di. c. extra conscientiam. 64. di. & ideo in Ecclesia saluberrima dicuntur. ca. illa. xij. dist. & hoc est quod scribitur Zacha. 8. circundabo domum meam. i. Ecclesiam. & ex his qui militant mihi. praelatis & principibus, qui uocati a Papa ad concilium uere circundāt domum suam Hoc est Ecclesiam suis militibus, unde & si utilia sunt, nō tñ uidentur necessaria, quia ut inquit S. Thom. non est necessarium licet sit utile conuocare concilium etiam ad declarationem fidei. ut dicit Card. Alexan. in c. Anastasius. 19. distin. Vnde 18. † quod ibi glo. dicit, intelligitur quando dubium circa fidem esset maximum, ita quòd etiam Papa cum Cardinalibus dubitaret, tunc enim merito deberet conuocari concilium uniuersale Episcoporum, ut dicit Card. de Turre Crema. in capitulo secundum Ecclesiæ. 19. dist. alias autem contradiceret dicta glo. capitulo Maiores. de baptismo. ubi patet quòd quæstiones maiores, maximè fidei, debent referri ad sedem Petri, & sic ad Papam. & idem in dicto capitulo quotiens. unde in capitulo omnes 22. distint. dicitur Romana Ecclesia Magistra fidei, & ad eam recurrit Hieronymus. ut in d. cap. hæc est fides, & ita concludit Abbas Panor. in	him, and in the disputation beginning Episcopus & rector. nu. 21. But just as the theory of the said Abbas on this point is greatly to be guarded against, as says D. Thom. de uio car. in the Apostils on S. Thom., in ij. ij. quæst. xj. articu. 2., so also from those things which Occham says; for he savored ill concerning the power of the supreme Pontiff, as says Archidia. Flo. in the third part of his chronicle, titu. xxiiij. capitulo 8. §. 2. Because 12. † as to the person of the Pope it is to be noted that, although he, insofar as he is a singular person, can err, and thus be a heretic, as in c. si Papa. xl. distinct. — as Pope Anastasius, as in c. Anastasius. xix. distinct.; and Symmachus, c. incompetenter. §. cum Balaam. 2. q. 7.; so Marcellinus, who adored idols, as in ca. nunc autem.

<i>Latin</i>	<i>English</i>
sua disputatione incipien. Episcopus & quidam rector. colu. 7. uersi. pro ea enim in persona Petri. Insuper, dicta glo. potest intelligi quando Papa uellet aliquid statuere contra ea quæ per concilium fuerunt statuta, ut tunc debeat concilium conuocare, ut dicit Card. in d. c. Anastasius & in c. sicut. xv. dist. firmat Panor. in d. c. maiores. colu. j. præterea ideo in causis fidei fuerunt congregata seu congregari conuenit concilia generalia propter discussionem & collationem cum multitudine uniuersali sapientium in fide, & propter indubitabiles & acceptatos ab omnibus iudices omni exceptione maiores, non propter potestatem. quia est ipsius Papæ, & quia acceptabilius ab omnibus erit, quod a tot tantisque sapiētibus erit decusum, ut dicit d. Card. de Vio. in dicta Apologia ij. parte capitulo 13. Et inquit in allegato tractatu. capitulo 9. cum dicitur de errore iudiciali, sola uniuersalis Ecclesia errare in fide non potest, non excluditur summus Pontifex, Sed includitur, quia autoritas determinandi de fide competens uniuersali Ecclesiæ principaliter residet in Romano Pontifice. ut dicit S. Tho. in d. 2. 2. q. xj. art. 3. ad 3. & propterea In	xxj. di.; and it is read in the Chronicles of Pope Sylvester the Second, who had done homage to the devil, whom, while Pope, he consulted, as writes Anto. in the second part of his Chronicle, Titulo xvj. §. xvij.; and so of others who were polluted with this stain, because they are men, and lie subject to infirmities, as do others, as Paul testifies, Hebrews 7, saying: every Pontiff taken from among men is appointed for men in the things that pertain to God, that he may offer to God sacrifices for sins, and that he may be able to have compassion on them that are ignorant and that err, because he himself also is compassed with infirmity. Nevertheless, 13. † in that definition which he makes of the things which are of the faith, he is so governed by God that he cannot judicially err, as the Card. writes at length in d. c. hæc est fides. And in

<i>Latin</i>	<i>English</i>
allegato quoli. S. Tho. Iudicio Ecclesiæ & Papæ ut synonymis utitur, aperiēs expresse sentētiæ Papę per assistentiam Diuinæ prouidentię standum est, certi namque sumus nec Papa, nec Ecclesia, aut sinodus uniuersalis integra potest in fide errare iudicando authoritatiue de fide. de Ecclesia autem aut sinodo acephala nihil inuenitur, quia nihil authoritatis sine capite in ea reperitur, quis multa merita doctrina & sapientia esse possint, quia præsumentum pro sentētia plurimorum doctorum. c. prudentiam. in prin. de offi. dele. Et 19. † illa sentētia uel opinio uidetur esse uerior quæ plurimorum iudicio est roborata. ut. l. j. uersi. crebrior apud ueteres. ff. de offi. q̄storis. & l. j. ff. de senatoribus. l. athletæ. ff. de infami. pro ut plura scribūt moder. in c. ne innitaris. de cōsti. & dī prouerbiorū xv. dissipantur cogitationes ubi non est consilium. & idem in c. 24. ibi salus ubi multa consilia. & in huiusmodi Concilijs uelut in quadrato lapide fidei Sanctæ structura consurgit, & cuiuslibet uitæ communisque actionis norma consistit, ut inquit tex. in c. sicut sancti. xv. dist. & in concilijs generalibus maturius res conficitur, quia ibi quàm plures	this sentence rests the aforesaid D. Cardi. de vio, in his treatise de authori. Papæ & conciliorum. capitulo 8., when he says that it is certain that the Pope, because he is one singular person, can err in the faith by personal error more than all the rest of the Church — which is not our subject, because our question is not about such error; but as to judicial error, in decreeing and determining the things which are of the faith, it is the converse: that he cannot err, because the community of the Church without the authority of the Pope can err more than the Pope. And although some have striven to impugn this, he himself defends it efficaciously in his apology, in ij. parte ca. xiiij. But 14. † that a perfect general council cannot err in the things which are of the faith, Card. de Turre. Crema. writes in his tracta. de potestate

<i>Latin</i>	<i>English</i>
conuocantur ut omnes in unum conueniant. c. canones. §. concilij. xv. dist. & est magis integrum iudicium quod plurimorum sententijs confirmatur. c. extra conscientia. lxiiij. dist. Domi. in c. per hoc. §. uerum. de hære. lib. vj. Et 20. † horum cōciliorum generalium congregatio regulariter ad summum Pontificē spectat. c. j. in fi. & c. ij. xvij. dist. & quod non fuerit cōgregatum authoritate summi pontificis non concilium dicendum est sed conuenticula uel conciliabulum appellandum est, & ideo cassandum, & quicquid in eo actum erit irritum habetur & uacuum, ut in c. multis. xvij. dist. & hoc regulare, qđ fallit in aliquibus casibus, in quibus congregatio non spectat ad summum pontificem, puta quando ipse impeteretur de hæresi, & in alijs, ut scribit Car. de Turre Crema. in suo tracta. de potestate ecclesi. li. iij. c. 8. & Decius in consi. clj. Antequàm perscruteris. col. j. & ij. Car. Alex. in c. Sinodum. 17. dist. & in c. si Papa. xl. dist. & quia non est præsentis speculationis ad scripta per eos me remitto, & ad ea quæ scribit Anto. de Rosellis in suo tracta. de concilijs. q. 4. Ad 21. † contraria alia patet solutio, quia	Ecclesi. lib. 3. cap. 58. and in ca. cum secundum. xix. distinct.; and Iacobus Almein. in lib. de suprema potestate. capitulo. xvij., where with efficacious reasons he confutes the things which Abbas Pano. writes in d. c. significasti. de electio., in iij. sententiarum. distin. xxiiij. q. j., near the end. Concerning 15. † the supreme power of which supreme Pontiff I wrote some things in the consilium which I lately published upon several doubts, and notably upon that one which with others is ventilated at Rome before the supreme Pontiff Clement the Seventh, between the most Illustrious Henry the Eighth, King of England, and the most Serene Lady Catherine, his most honorable consort, adorned with most illustrious virtues — namely, whether the first grade of affinity contracted between the same

<i>Latin</i>	<i>English</i>
licet segnius & difficilius expediantur negocia per plures, tamen prudentius agūtur propter assistentiam uirorum sapientum, qui interuenire habent his concilijs, & propterea dicitur Papa habere omnia iura in scrinio pectoris sui ut in c. j. de consti. lib. vj. scribit Maria. Socy. in tracta. de uisita. colu. iij. ex quo ostenditur, Papa & Imperator semper debent habere penes se uiros eminentis scientiæ, qui decisioni talium causarum intendant ut dicit Car. Alex. in d. c. multis. colu. j. quibus Ecclesia ad sui regimē permaxime dignoscitur indigere, ut dicit tex. in c. cum ex eo. de electio. præsertim diuinarum humanarumque legum professoribus, quorum scientia mundus illuminatur, & ad obediendum Deo & eius Vicario, & ministris uita subiectorum informatur, ut dicit tex. in auth. habita. C. ne filius pro Patre.	spouses, on account of the Marriage formerly entered by the same lady with Arthur, brother of the said Henry, who died without children, is prohibited by divine law; where with very many foundations I confirmed the negative side, which I proved by every law; and, granted that some should wish to cavil at it, or at least to reckon it ambiguous, it was shown by the clearest reasons and laws that, from a canonical cause of fact which was then present, Pope Julius the Second could dispense concerning the obstacle of the said affinity. Which doubts, at the bidding of our Caesar, ever Augustus, were transmitted to me, that I might respond concerning the truth; which begins: This cause is of the greatest weight, concerning which I judge that the more excellent doctors of the whole world

<i>Latin</i>	<i>English</i>
	are to be consulted; therefore among their consilia this one of mine will be as an ant before an elephant. Which cause being happily decided, it came forth into the light with others of mine, after it is established that it was accepted and approved by the same Caesar, by his sacred letters given to me at Mandril. But 16. † against the foregoing there seems to make a notable and perhaps singular glo. in c. Anastasius xix. di., saying that where the faith is at issue the Pope ought to require the counsel of the Bishops; which is most strongly urged, because, if the Pope alone could determine the things which are of the faith, and his sentence were stood by, to what purpose were those four solemn councils gathered — namely, the Nicene, the Constantinopolitan, the Ephesine, and the

<i>Latin</i>	<i>English</i>
	Chalcedonian — which Gregory says that he venerates as the four books of the Gospel; and they were gathered for the determination of things which were of the Catholic faith; concerning which in c. sicut. xv. di. For in vain is that done by more which can be done by fewer; and business is dispatched with more difficulty by more than by fewer — whence the verse: More men dispatch entrusted business more sluggishly — as is the text, together with the gl., in l. decreto. §. fi. e. ti. And Bal. says, in l. cuius. ff. de curatore furiosi., by that text, that jurisdiction ought to be exercised by the firstborn, and thus by one, because plurality brings in difficulty, as in l. ij. §. nouissime. ff. de origine iuris.; and there is an excellent argument in c. j. de hære. li. 6. To 17. † these things I say that the

<i>Latin</i>	<i>English</i>
	gathering of general councils brought great utility in the primitive Church, in that these councils extirpated many heresies, as in c. canones. xv. di.; which is evident also in that council of the Apostles held in Acts 15; because the things which are done in such councils are transacted with great maturity. c. quibus. xx. di. c. extra conscientiam. 64. di. And therefore they are called most salutary in the Church. ca. illa. xij. dist. And this is what is written, Zacharias 8: I will encompass my house — that is, the Church — and with these that war for me — with the prelates and princes, who, called by the Pope to a council, truly encompass his house, that is, the Church, with their soldiers. Whence, even if they are useful, they nevertheless do not seem necessary; because, as says S. Thom., it is not necessary, though it be useful, to

<i>Latin</i>	<i>English</i>
	convoke a council even for the declaration of the faith, as says Card. Alexan. in c. Anastasius. 19. distin. Whence 18. † what the glo. there says is understood of the case when the doubt concerning the faith should be greatest, so that even the Pope with the Cardinals should be in doubt; for then a universal council of Bishops ought deservedly to be convoked, as says Card. de Turre Crema. in capitulo secundum Ecclesiæ. 19. dist.; for otherwise the said glo. would contradict capitulo Maiores. de baptismo., where it is evident that greater questions, above all those of the faith, ought to be referred to the see of Peter, and thus to the Pope; and the same in the said capitulo quotiens. Whence in capitulo omnes 22. distint. the Roman Church is called the Mistress of the faith, and to her Jerome has recourse,

<i>Latin</i>	<i>English</i>
	as in d. cap. hæc est fides; and so concludes Abbas Panor. in his disputation beginning Episcopus & quidam rector. colu. 7. uersi. pro ea enim in persona Petri. Moreover, the said glo. can be understood of the case when the Pope should wish to establish something against the things which were established by a council — that then he ought to convoke a council, as says the Card. in d. c. Anastasius; and in c. sicut. xv. dist. Panor. confirms it, in d. c. maiores. colu. j. Furthermore, general councils were gathered, or it is fitting that they be gathered, in causes of the faith for this reason: because of the discussion and comparison with the universal multitude of those wise in the faith, and because of the undoubted judges, accepted by all, greater than every exception — not

<i>Latin</i>	<i>English</i>
	because of the power, since it is the Pope's own; and because that will be more acceptable to all which shall have been decided by so many and so great wise men, as says the said Card. de Vio. in the said Apology, ij. parte capitulo 13. And he says, in the alleged treatise, capitulo 9., that when it is said of judicial error that the universal Church alone cannot err in the faith, the supreme Pontiff is not excluded but included, because the authority of determining concerning the faith which belongs to the universal Church resides principally in the Roman Pontiff, as says S. Tho. in d. 2. 2. q. xj. art. 3. ad 3. And therefore in the alleged quodlibet S. Tho. uses the judgment of the Church and of the Pope as synonyms, showing expressly that one must stand by the sentence of the Pope, through the

<i>Latin</i>	<i>English</i>
	assistance of Divine providence; for we are certain that neither the Pope, nor the Church, nor an entire universal synod can err in the faith when judging authoritatively concerning the faith. But of a headless Church or synod nothing is found, because no authority is found in her without a head, although there can be many merits, learning, and wisdom; because the presumption is to be made in favor of the sentence of the greater number of doctors. c. prudentiam. in prin. de offi. dele. And 19. † that sentence or opinion seems to be truer which is strengthened by the judgment of the greater number. ut. l. j. uersi. crebrior apud ueteres. ff. de offi. q̄storis. & l. j. ff. de senatoribus. l. athletæ. ff. de infami., according as the moderns write more fully in c. ne innitaris. de cōsti. And

<i>Latin</i>	<i>English</i>
	it is said, Proverbs 15: Designs are brought to nothing where there is no counsel; and the same in ch. 24, there: safety where there are many counsels. And in councils of this kind, as upon a squared stone, the structure of the holy faith rises up, and the norm of every life and of common action stands, as says the text in c. sicut sancti. xv. dist. And in general councils the matter is accomplished with greater maturity, because there very many are convoked, that all may come together into one. c. canones. §. concilij. xv. dist. And that judgment is more entire which is confirmed by the sentences of the greater number. c. extra conscientia. lxiiij. dist. Domi. in c. per hoc. §. uerum. de hære. lib. vj. And 20. † the convocation of these general councils regularly belongs to the supreme Pontiff. c. j. in

<i>Latin</i>	<i>English</i>
	fi. & c. ij. xvij. dist. And that which shall not have been gathered by the authority of the supreme pontiff is not to be called a council, but is to be named a conventicle or a conciliabulum, and therefore is to be quashed; and whatever shall have been done in it is held invalid and void, as in c. multis. xvij. dist. And this is the regular rule, which fails in certain cases, in which the convocation does not belong to the supreme pontiff — for instance, when he himself should be accused of heresy — and in others, as writes Car. de Turre Crema. in his tracta. de potestate ecclesi. li. iij. c. 8., and Decius in consi. clj. Antequàm perscruteris. col. j. & ij., Car. Alex. in c. Sinodum. 17. dist. and in c. si Papa. xl. dist.; and because it is not a matter of the present speculation, I remit myself to the things written by them, and to those

<i>Latin</i>	<i>English</i>
	which Anto. de Rosellis writes in his tracta. de concilijs. q. 4. To 21. † the other contrary arguments the solution is evident: because, although business is dispatched more sluggishly and with more difficulty by many, yet it is transacted more prudently, on account of the assistance of wise men, who have to take part in these councils; and therefore the Pope is said to have all laws in the shrine of his breast, as in c. j. de consti. lib. vj.; so writes Maria. Socy. in tracta. de uisita. colu. iij. From which it is shown that the Pope and the Emperor ought always to have with them men of eminent knowledge, who may attend to the decision of such causes, as says Car. Alex. in d. c. multis. colu. j.; of whom the Church is known most greatly to stand in need for her own governance, as says the text

<i>Latin</i>	<i>English</i>
	in c. cum ex eo. de electio. — especially professors of the divine and human laws, by whose knowledge the world is illumined, and the life of subjects is formed unto obeying God and his Vicar and ministers, as says the text in auth. habita. C. ne filius pro Patre.
{Here ends Q. 9. On the same page (fol. 29v) follows the <i>SVMMARIVM</i> of the next quaestio (Q. 10; its items 1–3 on fol. 29v: <i>1 Hæretica assertio seu catholica an sit, ad quem spectat diffinire, theologo, an iuristæ. 2 Iuristis uidetur spectare declaratio assertionis hæreticæ uel catholicæ. 3 Professori cuilibet in sua professione credendum est. — items 4 sqq. continue on fol. 30r)</i> — not transcribed.}	{Here ends Q. 9. On the same page (fol. 29v) follows the <i>SUMMARY</i> of the next quaestio (Q. 10; its items 1–3 on fol. 29v: <i>1 To whom it belongs to define whether an assertion is heretical or Catholic — to the theologian, or to the jurist. 2 The declaration of an assertion as heretical or Catholic seems to belong to the jurists. 3 Every professor is to be believed in his own profession. — items 4 ff. continue on fol. 30r) — not transcribed.}</i>